

16. **S-CV-0056413 Redick, Marybeth v. Rodriguez, Deonna**

This tentative ruling is issued by **Commissioner Michael A. Jacques**. If oral argument is requested, it will be heard on **May 7, 2026, at 8:30 a.m. in Department 40** before Commissioner Michael A. Jacques.

Moving party is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Attorney's Fees

Respondent requests attorney's fees as the prevailing party in a civil harassment restraining order proceeding.

Petitioner filed an untimely opposition, declaration, exhibits, and a supplemental declaration. In its discretion, the court considered her filing, to the extent the documents were relevant to the question of attorney's fees.

Code of Civil Procedure section 527.6 (s) allows the prevailing party in a civil harassment restraining order action to be awarded court costs and attorney's fees. (Code Civ. Proc., § 527.6 (s).) Petitioner opposes based on the merits of the case, which is not relevant to the question of attorney's fees in a civil harassment restraining order proceeding. *Ibid*. Here, respondent was the prevailing party as the court denied petitioner's request for a civil harassment restraining order after a hearing on the merits. *Ibid*.

Respondent requests attorney's fees for over 9 hours of time spent litigating this case. (See Mot. Atty. Fees P&As.) A breakdown of time and work performed is included in the declaration submitted by respondent's counsel, which reflects 13.80 hours expended. (See Hensley Decl. Attach. A.) Respondent's counsel charges an hourly rate of \$430.00 per hour. See *id*. The court finds that the figure of \$2,532, the amount listed in the points and authorities filed concurrently with the motion, to be reasonable attorney's fees and costs.

Accordingly, the court grants respondent's motion for attorney's fees and costs to respondent, as the prevailing party, and awards \$2,532, the amount listed in the points and authorities filed concurrently with the motion.
